

13. S-PR-0013801 In Re the Escobar Rev Liv Trust

Petition to rescind / reform trust and for other relief

Appearance is required for continued hearing on petition to rescind / reform trust and for other relief.

Notices of hearing filed on form DE-115 do not adequately describe any personal property at issue. The reference to unspecified "accounts" does not appear to be "[a] description of the subject property sufficient to provide adequate notice to any party who may have an interest in the property." Prob.C. § 851(c)(1). Although counsel for trustee waived this defect at the prior hearing, notice appears to be insufficient as to Nathan Roeder, Aaron Escobar, Steven Roeder, and Madison Torosyan.

Motion to quash deposition for production of business records

Appearance is required for hearing on motion to quash deposition subpoena for production of business records.

14. S-PR-0013910 In Re the Ernestine Contreras Garcia Liv Trust

Petition to suspend trustee, compel account, appoint interim trustee

Appearance is required for continued hearing on petition to suspend trustee, compel trustee account, and appoint interim trustee.

Trustee account

Appearance is required for hearing on trustee account.

Missing notice of hearing re trustee account. Missing service of notice of hearing.

Missing verification to account. Prob.C. § 1021.

Account, as filed, does not comply with any format or content requirements of Prob.C. § 1060–1064: missing opening property on hand schedule in required form; missing other charges schedules (receipts, gains on sale); missing credits schedules (disbursements, distributions, losses on sale); trustee's time log is not part of an accounting; trustee may not demand payments from Ricardo Garcia through an account; missing final property on hand schedule.

Missing required trustee report. Prob.C. § 1064.

The account, as filed, cannot be approved.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the parties and the court to prepare for the hearing.